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House Sergeant at Arms: Legislative and Administrative Duties

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Introduction

The Sergeant at Arms is an elected officer of the House of Representatives, nominated at the beginning of each Congress by the House majority leadership, and elected by the House membership. The Sergeant at Arms has law enforcement, protocol, and administrative responsibilities within the House.[1] Initially established during the First Congress (1789-1791),[2] the duties of the Sergeant at Arms are mandated in law, House rules, custom, and oversight by the House Committee on Appropriations and the Committee on House Administration in the exercise of their oversight roles. Additionally, the Sergeant at Arms' portfolio complements the legislative and administrative operations of the Clerk of the House and the administrative functions of the Chief Administrative Officer.[3]

Election Process

As an elected official of the House, the Sergeant at Arms is chosen by House Members on the first day of a new Congress. In general, the majority party introduces a resolution to elect the officers of the House, including the Sergeant at Arms. The slate of candidates is often chosen by the majority party leadership, sometimes with consultation with the minority. After the resolution's introduction, the minority party typically offers an amendment to nominate their own slate of candidates for office. The vote to agree to the resolution is generally a party line vote.[4]

Interim Sergeant at Arms

In four cases, the incumbent Sergeant at Arms resigned or died in office. In each case, the Speaker, pursuant to 2 U.S.C. Section 75a-1(a), appointed an acting Sergeant at Arms. In three of the four cases, the acting Sergeant at Arms served until his resignation or until the chamber elected a new Sergeant at Arms. In the fourth case, during the 92nd Congress (1971-1972),

[1] U.S. Congress, House, "Rule II, clause 3" *Constitution, Jefferson's Manual, and Rules of the House of Representatives of the United States One Hundred Twelfth Congress*, prepared by John V. Sullivan, parliamentarian, 111th Cong., 2nd sess., H.Doc. 111-157 (Washington: GPO, 2011), §§656-660, pp. 365-368.

[2] "Tuesday May 12," *Annuals of the Congress of the United States*, vol. 1 (May 12, 1789), p. 330.

[3] For more information on the Clerk of the House, see CRS Report 98-761, *Clerk of the House: Legislative and Administrative Duties*, by Lorraine H. Tong. For more information on the Chief Administrative Officer of the House, see CRS Report RS22731, *Chief Administrative Officer of the House: History and Organization*, by Jacob R. Straus. For more information on House officers in general, see CRS Report RL33220, *Support Offices in the House of Representatives: Roles and Authorities*, by Ida A. Brudnick.

[4] For example, see the debate on the election of officers to the 112th Congress (2011-2012). Representative Jeb Hensarling introduced H.Res. 1 with the slate of majority candidates for the Clerk of the House, the Sergeant at Arms, the Chaplain, and the Chief Administrative Officer. Representative John Larson, after requesting that the question be divided for a separate vote on the Chaplain, offered an amendment, in the nature of a substitute, with a slate of minority candidates. The amendment was rejected and the House agreed to H.Res. 1, electing the majority candidates ("Election of Clerk of the House, Sergeant at Arms, Chief Administrative Officer and Chaplain," *Congressional Record*, daily edition, vol. 157 (January 5, 2011), p. H6). Additionally, the minority will sometimes nominate staff members as candidates for House officers. Pursuant to House Rule IV, clause 2 and clause 4, "minority employees nominated as elected officers of the House" have floor privileges during the current and all future Congresses. For more information, see U.S. Congress, House, "Rule IV, clause 2 and 4," *Constitution, Jefferson's Manual, and Rules of the House of Representatives One Hundred Eleventh Congress*, prepared by John V. Sullivan, Parliamentarian, 111th Cong., 2nd sess., H.Doc. 111-157 (Washington: GPO, 2011), §678 and §680.

Kenneth R. Harding was elected as Sergeant at Arms following the resignation of Zeake W. Johnson, Jr., in September 1972.[5]

The first instance of an acting Sergeant at Arms occurred in the 83rd Congress (1953-1954), when the House agreed to a resolution (H.Res. 323) to appoint then Clerk of the House Lyle O. Snader as temporary Sergeant at Arms.[6] Subsequently, on January 6, 1954, Mr. Snader resigned as Sergeant at Arms and Speaker Joseph W. Martin, pursuant to his authority under 2 U.S.C. Section 75a-1(a),[7] appointed William R. Bonsell "to act temporarily as Sergeant at Arms until the House chooses a person for that office."[8] Mr. Bonsell was formally elected as Sergeant at Arms on January 11.[9]

The second example of an acting Sergeant at Arms occurred in February 1980, when Kenneth R. Harding resigned from his post.[10] Speaker Thomas P. "Tip" O'Neill appointed Benjamin J. Guthrie "to act as and to temporarily exercise" the duties of Sergeant at Arms.[11] Mr. Guthrie was elected to a full term as Sergeant at Arms for the 97th Congress.[12]

In March 1992, Jack Russ resigned as Sergeant at Arms and Speaker Thomas Foley appointed Werner W. Brandt "to act as and to exercise temporarily the duties of Sergeant at Arms of the House of Representatives."[13] Mr. Brandt was subsequently elected to a full Congress as Sergeant for the 103rd Congress (1993-1994).[14]

On December 1, 2011, Speaker of the House, John Boehner announced that long-time Sergeant at Arms Wilson "Bill" Livingood would retire in January 2012.[15] Mr. Livingood formally tendered

[5] "Election of the Sergeant at Arms," *Congressional Record*, vol. 118, part 24 (September 25, 1972), p. 32000.

[6] "Lyle O. Snader," *Congressional Record*, vol. 99, part 6 (July 8, 1953), p. 8242. The House agreed to a second resolution (H.Res. 292), that authorized Mr. Snader "notwithstanding the provision of any other law, to serve concurrently as Clerk and Sergeant at Arms of the House of Representatives until another person is chosen by the House of Representatives to be and duly qualifies as Sergeant at Arms." Additionally, the resolution provided that Mr. Snader would *not* receive additional compensation while serving as both Clerk and Sergeant at Arms.

[7] 2 U.S.C. Section 75a-1(a) provides that, "In case of a vacancy, from whatever cause, in the office of Clerk, Sergeant at Arms, Chief Administrative Officer or Chaplain, of the House of Representatives, or in case of the incapacity or inability of the incumbent of any such office to perform the duties thereof, the Speaker of the House of Representatives may appoint a person to act as, and to exercise temporarily the duties of, Clerk, Sergeant at Arms, Chief Administrative Officer or Chaplain, as the case may be, until a person is chosen by the House of Representatives and duly qualifies as Clerk, Sergeant at Arms, Chief Administrative Officer or Chaplain, as the case may be, or until the termination of the incapacity or inability of the incumbent."

[8] "Temporary Appointment of William R. Bonsell as Sergeant at Arms," *Congressional Record*, vol. 100, part 1 (January 6, 1954), p. 8.

[9] "Sergeant at Arms, House of Representatives," *Congressional Record*, vol. 100, part 1 (January 11, 1954), p. 134.

[10] "Resignation as Sergeant at Arms of the House of Representatives," *Congressional Record*, vol. 126, part 4 (February 28, 1980), p. 4349; and "Resignation of Kenneth R. Harding as Sergeant at Arms," *Congressional Record*, vol. 126, part 4 (February 28, 1980), pp. 4349-4350.

[11] "Announcement by the Speaker Pro Tempore of Appointment of Acting Sergeant at Arms," *Congressional Record*, vol. 126, part 4 (February 28, 1980), p. 4350.

[12] "Election of Clerk of the House, Sergeant at Arms, Doorkeeper, Postmaster, and Chaplain," *Congressional Record*, vol. 127, part 1 (January 5, 1981), p. 91.

[13] "Resignation as Sergeant at Arms and Appointment of Sergeant at Arms of the U.S. House of Representatives," *Congressional Record*, vol. 138, part 4 (March 12, 1992), p. 5519.

[14] "Election of Clerk of the House, Sergeant at Arms, Doorkeeper, and Chaplain," *Congressional Record*, vol. 139, part 1 (January 5, 1993), pp. 48-49.

[15] Speaker of the House of Representatives, "House Sergeant at Arms to Retire," press release, December 1, 2011, http://www.speaker.gov/News/DocumentSingle.aspx?DocumentID=270873.

his resignation on January 17, 2012.[16] Immediately following, the House agreed to H.Res. 511 by voice vote and elected Paul D. Irving as Sergeant at Arms.[17] Mr. Irving was elected to a full term for the 113th Congress (2013-2014).[18]

Duties of the Sergeant at Arms of the House

As the chief law enforcement officer of the House, the Sergeant at Arms is responsible for security in the House wing of the Capitol, the House office buildings, and on adjacent grounds. Under the direction of the Speaker of the House or other presiding officer, the Sergeant at Arms plays an integral role in maintaining order and decorum in the House chamber.

Protection and Security

The Sergeant at Arms is responsible for ensuring the safety and security of Members of Congress, congressional staff, visiting national and foreign dignitaries, and tourists.[19] Toward this mission, the Sergeant at Arms works in concert with the Senate Sergeant at Arms and the Architect of the Capitol. These three officials comprise the Capitol Police Board.[20]

The Office of House Security within the Office of the Sergeant at Arms processes security clearances for House employees whose duties require a clearance. In addition, the Office of House Security acts as a repository for classified documents and provides a secure location for the review of those documents.

In 2010, the Sergeant at Arms was tasked with the responsibilities of the former Office of Emergency Preparedness, Planning and Operations[21]—now renamed the Office of Emergency Management. The Office of Emergency Management ensures the continuity of operations of the House and the safety of its Members, staff, employees, and visitors during emergencies.

[16] "Swearing in of the Sergeant at Arms of the House of Representatives," *Congressional Record*, daily edition, vol. 158 (January 17, 2012), p. H10.

[17] Ibid.

[18] "Electing Officers of the House of Representatives," *Congressional Record*, daily edition, vol. 159 (January 3, 2013), p. H6.

[19] U.S. Congress, House of Representatives, "Officers and Organizations: Sergeant at Arms," *The House Explained*, http://www.house.gov/content/learn/officers_and_organizations/sergeant_at_arms.php.

[20] 2 U.S.C., §1901 note. The Capitol Police Board was established by statute in 1873. The board oversees the United States Capitol Police (USCP). Currently, the board's purpose "is to oversee and support the Capitol Police in its mission and to advance coordination between the Capitol Police and the Sergeant at Arms of the House of Representatives and the Sergeant at Arms and Doorkeeper of the Senate, in their law enforcement capacities and the Congress" [P.L. 108-7, sec 1014(a)(1); 2 U.S.C. §1901]. Law enforcement authority for the Sergeants, acting in their capacities as officers of their respective chambers, appears to derive from statute originally enacted in 1867 and 1876. Current law states that SSAA and HSAA have authority "to make such regulations as they may deem necessary for preserving the peace and securing the Capitol from defacement, and for the protection of the public property therein." To enforce those authorities, Congress conferred on the Sergeants the "power to arrest and detain any person violating such regulations, until such person can be brought before the proper authorities for trial" [2 U.S.C. §2183]. In 1995, Congress provided that HSAA "shall have the same law enforcement authority, including the authority to carry firearms, as a member of the Capitol Police," subject to certain qualifications [P.L. 104-53, title III, Sec. 313, November 19, 1995, 109 Stat. 538; 2 U.S.C. §78, note].

[21] The Office of Emergency Preparedness, Planning and Operations was "responsible for mitigation and preparedness operations, crisis management and response, resource services, and recovery operations" [2 U.S.C. §130i (a)].

Decorum

Pursuant to House Rules, the Sergeant at Arms (or his assistant) attends all floor sessions. Additionally, the Sergeant at Arms is authorized to hold up the mace, the symbol of the Sergeant at Arms' authority to enforce order within the chamber.[22] The Sergeant at Arms may be directed to compel absent Members to attend House sessions in order to achieve the necessary quorum by escorting them to the chamber.[23] Both practices have been rare, particularly in recent years.

Protocol

Through custom and precedent, the Sergeant at Arms performs a number of protocol and ceremonial duties. Among these duties are to lead formal processions at ceremonial events (such as presidential inaugurations, joint sessions and meetings of Congress, and formal addresses to the Congress); to greet and escort visiting foreign dignitaries; and to organize and coordinate arrangements for travel for Members of Congress to congressional funerals.

Additionally, the Sergeant at Arms carries the mace into the House chamber each day the House is in session and "places it on its green marble pedestal on the Rostrum, to the right of the Speaker." The mace remains on the pedestal "while the House is in session, allowing Members and visitors to easily determine whether the House is in session or in committee. The lower level of the marble pedestal is used when the House is resolved into the Committee of the Whole for the President's State of the Union address."[24]

Administrative

The Sergeant at Arms performs a number of administrative services in support of the Members, staff, and visitors associated with the security and other operations of the House, including operating the House appointments desk and the House garages and parking lots.[25] In addition to serving on the Capitol Police Board, the House Sergeant at Arms serves with the Clerk of the House, the Senate Sergeant at Arms, the Secretary of the Senate, and the Architect of the Capitol on the Congressional Accessibility Services Board.[26] This board oversees the Office of Congressional Accessibility Services, which provides and coordinates accessibility services for individuals with disabilities in the U.S. Capitol complex. The Sergeant at Arms also served with the Clerk of the House on the House Page Board,[27] which set policies for the page program.[28]

House rules require the Sergeant at Arms to report semiannually to the Committee on House Administration the financial and operational status of each function under his jurisdiction.[29] The

[22] 2 U.S.C. §78. For example, in 1911, the Speaker ordered the Sergeant at Arms to "take the mace and see that gentlemen are seated" [6 *Cannon's Precedents* §258].

[23] *House Rule* XX, clause 5(b).

[24] U.S. Congress, Clerk of the House of Representatives, "The Mace in the House Chamber," *Art & History: Splendid Hall*, http://artandhistory.house.gov/art_artifacts/virtual_tours/splendid_hall/artifacts.aspx.

[25] U.S. Congress, House, "Sergeant at Arms," *The House Explained*, http://www.house.gov/content/learn/officers_and_organizations/sergeant_at_arms.php.

[26] 2 U.S.C. §130(e).

[27] 2 U.S.C. §88-b-3.

[28] In August 2011, Speaker John Boehner and Minority Leader Nancy Pelosi jointly announced the end of the House page program. For more information, see Speaker of the House of Representatives, "Statement by Speaker Boehner & Democratic Leader Pelosi on the House Page Program," press release, August 8, 2011, http://www.speaker.gov/News/DocumentSingle.aspx?DocumentID=255391.

[29] *House Rule* II, clause 3 (e).

reports provide financial statements, describe current operations, and present new and future plans.

The Office of the Sergeant at Arms comprises eight divisions, which are described in **Table 1**.

Table 1. Office of the House Sergeant at Arms

Division	Functions/Responsibilities
Member Support	Assists House Members and their staff with administrative issues such as Member and spouse pins and Member tags.
Chamber Security	Oversees security, maintains order and decorum of the House chamber; and oversees access to the House floor and galleries.
Garages & Parking Security	Oversees the safety and security of vehicles and pedestrians in all House garages and parking areas.
Information Services	Provides identification cards to permanent and temporary House staff (and other workers), and to the spouses and immediate family of House Members.
Police Services	Coordinates (as one of the three members of the Capitol Police Board) the security efforts affecting the Capitol and House office buildings; investigates threats/crimes against House Members and staff; and provides protective details for House Members and leaders.
Special Events/Protocol	Coordinates logistical support for all major events held in the Capitol, House office buildings, or on the Capitol grounds; and also coordinates House events related to the visits of foreign dignitaries and other protected persons.
Office of Emergency Management	Provides and implements a comprehensive Emergency Planning, Preparedness and Operations Program for the House, ensures the continuity of operations of the House and the safety of its Members, staff, and visitors during emergencies.
Office of House Security	Assists House staff in obtaining security clearances and acts as a repository for classified documents, and provides security training for House staff.

Source: Information provided by the Office of the Sergeant at Arms on May 24, 2011.

For more information on the Office of the Sergeant at Arms, see http://sgtatarms.house.gov (House access only).

Appendix. Sergeants at Arms of the House of Representatives

Since the First Congress (1789-1791), 36 men (including acting) have served as Sergeant at Arms of the House. Included among the individuals to serve as Sergeant at Arms are eight former Members of the House.[30] The longest-tenured Sergeant at Arms was Joseph Wheaton, the first Sergeant at Arms. He served a total of 18 years during nine Congresses. The second-longest-tenured Sergeant at Arms was Wilson "Bill" Livingood, who served in nine Congresses for a total of 17 years.

Table A-1. Sergeant at Arms of the House of Representatives

Congress Elected	Sergeant at Arms	Date First Elected
1st (1789-1791)	Joseph Wheaton	May 12, 1789
10th (1807-1809)	Thomas Dunn	October 27, 1807
18th (1823-1825)	John O. Dunn	December 6, 1824 [a]
23rd (1833-1835)	Thomas B. Randolph	December 3, 1833
24th (1835-1837)	Roderick Dorsey	December 15, 1835
27th (1841-1843)	Eleazor M. Townsend	June 8, 1841
28th (1843-1845)	Newton Lane	December 7, 1843
30th (1847-1849)	Nathan Sergeant	December 8, 1847
31st (1849-1851)	Adam J. Glossbrenner [b]	January 15, 1850
36th (1859-1861)	Henry W. Hoffman	February 3, 1860
37th (1861-1863)	Edward Ball [b]	July 5, 1861
38th (1863-1865)	Nehemiah G. Ordway	December 8, 1863
44th (1875-1877)	John G. Thompson	December 6, 1875
47th (1881-1883)	George W. Hooker	December 5, 1881
48th (1883-1885)	John P. Leedom [b]	December 4, 1883
51st (1889-1891)	Adoniram J. Holmes [b]	December 2, 1889
52nd (1891-1893)	Samuel S. Yoder [b]	December 8, 1891
53rd (1893-1895)	Herman W. Snow [b]	August 7, 1893
54th (1895-1897)	Benjamin F. Russell	December 2, 1895
56th (1895-1897)	Henry Casson	December 4, 1899
62nd (1911-1913)	Uriah Stokes Jackson [c]	April 4, 1911
	Charles F. Riddell	July 18, 1912 [d]
63rd (1911-1913)	Robert B. Gordon [b]	April 7, 1913
66th (1919-1921)	Joseph G. Rodgers	May 19, 1919
72nd (1931-1933)	Kenneth Romney	December 7, 1931

[30] Former Representatives Adam J. Glossbrenner, Henry W. Hoffman, Edward Ball, John P. Leedom, Adoniram J. Holmes, Samuel S. Yoder, Herman W. Snow, and Robert B. Gordon all served as Sergeant at Arms of the House.

Congress Elected	Sergeant at Arms	Date First Elected
80th (1947-1948)	William F. Russell	January 3, 1947
81st (1951-1952)	Joseph H. Callahan	January 3, 1949
83rd (1953-1954)	William F. Russell [e]	Janaury 3, 1953
	Lyle O. Snader	July 8, 1953 [f]
	William R. Bonsell	January 11, 1954 [g]
84th (1955-1956)	Zeake W. Johnson, Jr.	January 5, 1955
92nd (1971-1972)	Kenneth R. Harding	October 1, 1972 [h]
96th (1979-1980)	Benjamin J. Guthrie	March 1, 1980 [i]
98th (1983-1984)	Jack Russ	January 3, 1983
102nd (1991-1992)	Werner W. Brandt	March 12, 1992 [j]
104th (1995-1996)	Wilson "Bill" Livingood	January 4, 1995 [k]
112th (2011-2012)	Paul D. Irving	January 17, 2012 [m]

Source: U.S. Congress, Clerk of the House of Representatives, "Sergeants at Arms of the House (1789 to Present), *House History*, http://artandhistory.house.gov/house_history/sergeants_at_arms.aspx.

Notes:

a. John O. Dunn was elected to fill the vacancy caused by the death of Thomas Dunn [*House Journal*, 18th Cong., 2nd sess. (December 6, 1824), p. 8].

b. Former Member of the House of Representatives.

c. Died in June 1912.

d. Charles F. Riddell was elected to fill the vacancy caused by the death of Uriah Stokes Jackson ["Election of Sergeant at Arms," *Congressional Record*, vol. 48, part 8 (July 18, 1912), p. 9241].

e. Died on July 7, 1953.

f. Lyle O. Snader was the Clerk of the House and was appointed the duties of the Sergeant at Arms until a replacement was elected ["Lyle O. Snader," *Congressional Record*, vol. 99, part 6 (July 8, 1953), p. 8242].

g. William R. Bonsell was appointed on September 15, 1953, "to act temporarily as Sergeant at Arms" ["Temporary Appointment of William R. Bonsell as Sergeant at Arms," *Congressional Record*, vol. 100, part 1 (January 6, 1954), p. 8], following the resignation of Lyle O. Snader ["Sergeant at Arms," *Congressional Record*, vol. 100, part 1 (January 6, 1954), p. 8]. Mr. Bonsell was formally elected as Sergeant at Arms on January 11, 1954, by H.Res. 402 (83rd Congress) ["Sergeant at Arms, House of Representatives," *Congressional Record*, vol. 100, part 1 (January 11, 1954), p. 134].

h. Kenneth R. Harding was elected effective October 1, 1972 ["Election of the Sergeant at Arms," *Congressional Record*, vol. 118, part 24 (September 25, 1972), p. 32000], following the resignation of Zeake W. Johnson Jr. ["Resignation of the Sergeant at Arms," *Congressional Record*, vol. 118, part 24 (September 25, 1972), pp. 31999-32000].

i. Benjamin J. Guthrie was appointed "to act as and to temporarily exercise" the duties of Sergeant at Arms ["Announcement by the Speaker Pro Tempore of Appointment of Acting Sergeant at Arms," *Congressional Record*, vol. 126, part 4 (February 28, 1980), p. 4350], following the resignation of Kenneth R. Harding ["Resignation as Sergeant at Arms of the House of Representatives," *Congressional Record*, vol. 126, part 4 (February 28, 1980), p. 4349; and "Resignation of Kenneth R. Harding as Sergeant at Arms," *Congressional Record*, vol. 126, part 4 (February 28, 1980), pp. 4349-4350].

j. Werner W. Brandt was appointed by the Speaker of the House "to act as and to exercise temporarily" the duties of the Sergeant at Arms on March 12, 1992 ["Swearing in of Werner W. Brandt as Sergeant at Arms of the House," *Congressional Record*, vol. 138, part 4 (March 12, 1992), p. 5519], following the resignation of Jack Russ ["Resignation as Sergeant at Arms and Appointment of Sergeant at Arms of the United States House of Representatives," *Congressional Record*, vol. 138, part 4 (March 12, 1992), p. 5519].

k. Wilson Livingood resigned as Sergeant at Arms effective January 17, 2012 [Speaker of the House of Representatives, "House Sergeant at Arms to Retire," press release, December 1, 2011, http://www.speaker.gov/News/DocumentSingle.aspx?DocumentID=270873].

l.

m. "Swearing in of the Sergeant at Arms of the House of Representatives," *Congressional Record*, daily edition, vol. 158 (January 17, 2012), p. H10. Mr. Irving was reelected as Sergeant at Arms for the 113th Congress with the adoption of H.Res. 1 ["Electing Officers of the House of Representatives," *Congressional Record*, daily edition, vol. 159 (January 3, 2013), p. H6].

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